Harris County District Court

Cause No. 2024-CV-0027

Jennifer Watts, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 25, 2024
Plaintiff's counsel:	Kyle Sanders, Marshall & Dominguez LLP

PARTIES

Plaintiff, Jennifer Watts, is an individual reisding in Texas who was injured in a motor vehicle collision. Defendant is an automobile insurance company authorized to write policies in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage under which Plaintiff seeks relief.

FACTS

On March 31, 2024, Plaintiff was lawfully operating a vehicle on a public roadway in Houston. Plaintiff was in the process of turning left at an intersection when another driver struck the side of Plaintiff's vehicle. The collision was sudden, and Plaintiff had no reasonable opportunity to avoid it. Plaintiff timely reported the accident and submitted a claim to Defendant under the policy in effect at the time of the loss. Defendant has not paid the claim in an amount sufficient to cover Plaintiff's losses.

NEGLIGENCE

The at-fault driver failed to keep a proper lookout, failed to yield the right of way, and failed to control speed as a reasonably prudent driver would under the same circumstances. Defendant, as the insurer obligated under the policy, owed Plaintiff a duty of good faith and fair dealing, including a duty to conduct a reasonable investigation and to promptly and fairly evaluate and pay covered claims. Defendant breached these duties by delaying its evaluation of the claim, failing to give fair consideration to Plaintiff's medical documentation, and offering an amount far below the reasonable value of the covered loss. These acts and omissions constitute violations of the Texas Insurance Code and common law.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious shoulder injury that has required medical treatment, physical therapy, and time away from work. Plaintiff has incurred past and future medical expenses, lost wages, loss of earning capacity, physical pain, mental anguish, and diminished enjoyment of life. Plaintiff seeks recovery of benefits due under the policy, statutory damages, attorney's fees, and court costs. Plaintiff demands damages in the amount of $205,000.00, together with pre-judgment and post-judgment interest as allowed by law.